

HOUSE No. 2875

The Commonwealth of Massachusetts

PRESENTED BY:

Bradley H. Jones, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to a universal sick leave bank policy.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>1/17/2025</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>1/21/2025</i>
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>1/31/2025</i>
<i>Todd M. Smola</i>	<i>1st Hampden</i>	<i>3/10/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>1/30/2025</i>
<i>Donald R. Berthiaume, Jr.</i>	<i>5th Worcester</i>	<i>2/3/2025</i>

HOUSE No. 2875

By Representative Jones of North Reading, a petition (accompanied by bill, House, No. 2875) of Bradley H. Jones, Jr., and others relative to a universal sick leave bank policy for state agencies. Public Service.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to a universal sick leave bank policy.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 30 of the General Laws, as appearing in the 2022 Official Edition, is hereby
2 amended by inserting after section 46H the following section:-

3 SECTION 46H1/2. Consolidated Sick Leave Bank Procedures

4 (a) All state agencies shall establish rules and procedures to be used by employees who
5 have contributed to the Sick Leave Bank. Each agency may decide to permit sick leave bank
6 donations to be made on an as needed basis.

7 (b) The following provisions must be included in the rules and regulations adopted by the
8 state agencies:

9 1. The agencies must review the sick leave utilization of any member of the Sick Leave
10 Bank who applies for sick leave from the bank. Sick leave will not be granted to an applicant
11 with evidence of prior sick leave abuse in his or her personnel file or attendance record.

12 2. The agencies must require adequate evidence of illness or injury, which is not job-
13 related, of an employee only (not any family member).

14 3. An employee who applies to the Sick Leave Bank must have used all available accrued
15 and accumulated leave including vacation and personal leave.

16 (c) Any unused sick leave remaining in the Sick Leave Bank on December 31 shall be
17 reverted to the contributor, provided that totals shall not exceed 25 days.

18 (d) Nothing contained herein shall affect current collective bargaining agreements
19 relative to the establishment of sick leave bank policies.